

24TRCV02786 24TRCV02786

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-27

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Case Number: 24TRCV02786 Hearing Date: August 27, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

VIVIAN

GINYARD,

Plaintiff,

Case No.:

24TRCV02786

vs.

[Tentative]

RULING

CITY

OF INGLEWOOD,

Defendant.

Hearing

Date: August

27, 2026

Moving Parties: Defendant City of
Inglewood

Responding

Party: Plaintiff Vivian Ginyard

Motion

for Summary Judgment

The Court considered the moving, opposition, and reply papers.

RULING

The motion for summary judgment is GRANTED.

BACKGROUND

On August

21, 2024, plaintiff Vivian Ginyard filed a complaint against City of Inglewood for (1) premises liability based on dangerous condition of public property and (2) general negligence as to a trip and fall on November 11, 2023.

LEGAL

AUTHORITY

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal.4th 826, 843. "Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences

reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519. A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2).

"The pleadings play a key role in a summary judgment motion and set the boundaries of the issues to be resolved at summary judgment. The scope of the issues to be properly addressed in a summary judgment motion is generally limited to the claims framed by the pleadings. A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion." Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 444 (citations, alterations, and quotation marks omitted).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; CCP §437c(c).

OBJECTIONS

Plaintiff filed a “request to strike,” objecting to portions of Flynn Marine’s and Aisha Thompson’s declarations. The Court will consider plaintiff’s objections. Plaintiff asserts that the declarants failed to meet a foundational requirement under Evidence Code § 1284, which states that “[e]vidence of a writing made by the public employee who is the official custodian of records in a public office, reciting diligent search and failure to find a record, is not made inadmissible by the hearsay rule when offered to prove the absence of a record in that office.” Plaintiff notes that the declarants do not state that they are the official custodians of the City’s Department of Public Works records and that Thompson did not state her search was diligent. Evidence Code section 1284 does not preclude consideration of the declarations at this stage of the case.

On a motion for summary judgment, the parties “may rely on hearsay presented through affidavits and deposition testimony. (Code Civ. Proc., § 437c, subd. (b)(1), (2).) Such affidavits or declarations ‘shall be made by a person on personal knowledge, shall set forth admissible evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated in the affidavits or declarations.’ (Code Civ. Proc., § 437c, subd. (d).)” *Forest Lawn Memorial-Park Assn. v. Superior Court* (2021) 70 Cal.App.5th 1, 8. The declarations stand in the place of testimony that could be presented at trial. There is no reason to assume that, rather than presenting Marine and Thompson to testify at trial, the City would simply submit these declarations as exhibits. Plaintiff’s objections, all of which are based on the failure to meet the foundational requirements of Evidence Code section 1284, are OVERRULED.

DISCUSSION

Defendant City of Inglewood requests summary judgment in its favor and against plaintiff on the ground that no triable issue of material fact exists and defendant is entitled to summary judgment as a matter of law.

The complaint alleges that on November 11, 2023, plaintiff was walking out of a funeral, through a parking lot near 3196 W. 85th Street, Los Angeles, when she stepped and fell on uneven sidewalk, causing her injuries, loss of earnings and

earnings capacity, past and future medical expenses, and general damages. The complaint alleges that the subject premises were under defendant's ownership, maintenance, repair, and control. Plaintiff asserted two causes of action: one for premises liability based on dangerous condition of public property that the government entity had constructive notice of, and another for negligence.

The parties do not dispute that on the morning of November 11, 2023, plaintiff had just left the church located at 3196 85th Street, in Inglewood, with approximately eight or ten people. Defendant's Separate Statement of Undisputed Material Facts ("DUMF") 1. At approximately 11:00 a.m., plaintiff was walking from the church parking lot and was headed to the church hall that was located behind the church parking lot. DUMF 2. Plaintiff alleges that she stepped on an unlevel portion of the sidewalk and fell. DUMF 3. The uneven portion of the sidewalk identified as the location where plaintiff tripped and fell was measured to be approximately 7/8-inch in depth. DUMF 4. Plaintiff testified that it was light outside at the time of the incident. DUMF 5. The weather conditions were normal. DUMF 6. Plaintiff stated that before her fall she never contacted the City of Inglewood to inform it of any condition of the sidewalk at the subject incident location. DUMF 8. Plaintiff is unaware of anyone else who may have contacted the City before the day of her fall to inform the City about the condition of the sidewalk at or near the incident location. DUMF 9. On May 28, 2024, a governmental tort claim was submitted to the City of Inglewood on behalf of plaintiff regarding the incident. DUMF 10.

The parties also do not dispute that on June 20, 2024, the City conducted a field inspection at or near the subject incident location. DUMF 11. During the field inspection, City personnel located the uneven portion of the sidewalk. DUMF 12. City personnel ground the raised portion of the sidewalk down. DUMF 13.

First cause of action for premises liability based on dangerous condition of public property

“Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

Gov. Code § 835. A “dangerous condition” is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” Gov. Code § 830(a).

Gov. Code § 835.2(b) states, in part: “A public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.”

Defendant City argues that plaintiff cannot establish a “dangerous condition” because she cannot show that the condition created a “substantial risk of injury.” Defendant contends that the risk of injury was minor, trivial, and/or insignificant as a matter of law. Defendant asserts that the alleged defect, a raised, uneven sidewalk, was trivial and readily apparent to any person exercising due care. Defendant contends that the purported dangerous condition is an approximate 7/8” lift in the sidewalk and that there are no surrounding circumstances that would render this otherwise trivial defect substantial.

Defendant asserts that there was nothing that prevented plaintiff from seeing the sidewalk in front of her; there were no reports of similar incidents; and the City had no service order requests to repair the sidewalk prior to plaintiff's fall.

Defendant further asserts that it did not create the condition of public property. Defendant also contends that it had no actual or constructive notice of any alleged dangerous condition prior to the incident as there were no requests for service; no prior claims or lawsuits regarding the sidewalk at the location of plaintiff's fall; City employees are instructed to report any hazards in the City that are observed; and the City received no such reports. Marine Dec., ¶¶ 10-12. Defendant also argues that there is no statute setting forth a requirement for inspection, standards of inspection, or manner of inspection, and thus there can be no public entity duty of inspection.

In opposition, plaintiff argues that the area of plaintiff's fall constituted a non-trivial dangerous condition, citing to the declaration of Gidon R. Vardi, Ph.D., president of A T Vardi, Inc. He states that he conducted a site inspection of the area, documented with photographs and measurements. He states that the uneven surface between the concrete sidewalk and the red brick pavers within the tree well ranged from 1-7/16" to 2". Plaintiff asserts that expert Vardi noted the following aggravating factors: uneven and unstable walking surface laid within the tree well failed to be stable and firm; any changes in the walking surface greater than 1/2" is in violation of California Building Code; the City violated applicable state codes and regulations requiring sidewalks to be maintained in a safe condition; and the placement of brick pavers within the tree well created a misleading appearance of safety, increasing the risk to pedestrians.

Plaintiff also argues that there is a triable issue of fact as to whether the City had constructive notice and whether it reasonably inspected its public sidewalks prior to the time of the incident, noting that the City admits it conducts no inspections of its sidewalks absent a complaint made. Plaintiff asserts that the City's inspection approach might be reasonable depending on cost and practicability but that is for the trier of fact, noting that the City submits no evidence with respect to the practicability and cost of inspection weighed against the likelihood and magnitude of the potential danger to which failure to inspect

would give rise.

In reply, defendant reiterates that it is undisputed that the precise location where plaintiff fell was a vertical differential measuring 7/8", and thus within the range of sidewalk elevations that have been found to be trivial as a matter of law.

Defendant argues that plaintiff "impermissibly" attempts to redefine the dangerous condition. Defendant also contends that while a code violation can be evidence bearing on dangerousness, it does not establish as a matter of law that it constitutes a "dangerous condition." Defendant argues that even viewing plaintiff's expert's proffered opinion concerning the purported "aggravating" circumstances," plaintiff still fails to establish causation, noting that plaintiff never testified that she encountered the more than 2" uneven surface, never identified it as the mechanism of her fall, and never complained that the brick paver configuration, instability, or the purported misleading appearance caused her to fall. Moreover, defendant argues, plaintiff has failed to meet her burden of establishing that defendant created the dangerous condition or to show that defendant had constructive or actual notice.

The Court rules as follows: As for the threshold issue as to whether the defect is a dangerous condition, "[the trivial defect] doctrine permits a court to determine whether a defect is trivial as a matter of law, rather than submitting the question to a jury." Stathoulis

v. City of Montebello (2008) 164 Cal.App.4th 559, 567 (citation omitted). "The legal analysis involves several steps. First, the court reviews evidence regarding

the type and size of the defect. If that

preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff's knowledge of the area. If

these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law and grant judgment for the landowner." Id. at 567-568 (citation omitted). "The decision whether a crack

or other defect in a walkway is dangerous does not rest entirely on the size of the depression. Although the size of a

crack or pothole is a pivotal factor in the determination, 'a tape measure

alone cannot be used to determine whether the defect was trivial.' 'Instead, the court should determine whether

there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate.” Id. at 566 (citations omitted).

The parties do not dispute the 7/8” height differential where plaintiff tripped, which on its own, is trivial. See id. at 568 (“Several decisions have found height differentials of up to one and one-half inches trivial as a matter of law.”). Defendant has presented evidence that factors such as weather, lighting, or visibility did not make the defect sufficiently dangerous to a reasonably careful person. The burden thus shifts to plaintiff to prove a triable issue of material fact.

Plaintiff presented evidence that the area where plaintiff fell was surrounded by uneven ground. Photographs of the area show that the red brick pavers themselves are neither even with the sidewalk nor with each other, and plaintiff has provided a declaration showing that the height differential between the sidewalk and the red brick pavers varied. Def.’s Ex. E (pictures); G. Vardi Dec., ¶ 16. This case is similar to *Stathoulis v. City of Montebello*, supra, 164 Cal.App.4th 559, 569, in which the court found that the presence of three irregularly shaped and sizeable holes of about an inch deep flanking one another in the street may have increased the risk of injury to a reasonably careful pedestrian, such that the court could not determine, as a matter of law, that the condition was trivial. As in *Stathoulis*, although the question is close, given the height differential in combination with the surrounding conditions, there is a triable issue of material fact regarding the degree of dangerousness of the uneven ground in the area where plaintiff fell. See id.

The Court finds that defendant has met its burden of showing that plaintiff cannot establish the City had constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. “‘Constructive notice,’ under section 835.2, subdivision (b), requires a plaintiff to establish that the dangerous condition existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” *Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317. The City presented evidence that the dangerous condition was not obvious because it was less than one inch in height and there had been no prior complaints about it. See id. at 319-320 (finding that a lack of complaints concerning the condition, as well as the fact that the condition is slight in size and not clearly visible from a public street supports a finding

that it was not obvious).

The burden thus shifts to plaintiff to demonstrate a triable issue of material fact on whether the dangerous condition was obvious. Plaintiff has failed to do so. As discussed, plaintiff's objections to the declarations of Marine and Thompson are overruled, thus defendant has presented adequate evidence sufficient to carry its burden. Moreover, plaintiff's argument focuses on the City's lack of evidence regarding an inspection protocol, but "[w]hether the dangerous condition was obvious and whether it existed for a sufficient period of time are threshold elements to establish a claim of constructive notice. Where the plaintiff fails to present direct or circumstantial evidence as to either element, [the] claim is deficient as a matter of law." *Heskel v. City of San Diego*, supra, 227 Cal.App.4th 313, 317 (citation omitted). Without evidence satisfying the threshold requirement that the condition was obvious, the City's inspection protocol, or lack thereof, is immaterial.

Finally, in her complaint, plaintiff did not plead either that the City had actual notice of the defect or that a City employee created the dangerous condition, thus defendant is not required to produce affirmative evidence demonstrating there is no triable issue of material fact on these issues. See *Jacobs v. Coldwell Banker Residential Brokerage Co.*, supra, 14 Cal.App.5th 438, 444 (explaining that the scope of issues in a motion for summary judgment is framed by the pleadings).

Accordingly, there is no triable issue of material fact on the first cause of action.

Second cause of action for negligence

Plaintiff asserts a cause of action for negligence based on the same underlying facts as her premises liability claim. Defendant argues that plaintiff has failed to articulate a statutory basis against the City as all governmental tort liability must be based on statute. See Gov. Code § 815. Defendant further asserts that plaintiff cannot establish the elements of duty or breach.

In opposition, plaintiff argues that she has

established a prima facie case for negligence as the cause of action incorporates the first cause of action and thus sets forth a statutory basis for liability in accord with Gov. Code § 835.

In reply, defendant argues that because this claim is not statutorily authorized, defendant is entitled to judgment as a matter of law.

The Court finds that defendant has shown that plaintiff cannot establish the elements of general negligence because the claim is not based on a statute. See Gov.

Code § 815 ("Except as otherwise provided by statute, a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or public employee or any other person.").

ORDER

The motion for summary judgment is GRANTED.

Defendant is ordered to file a proposed judgment.

Defendant is ordered to give notice of ruling.